

178 U. S. 239; *Equitable Life Assurance Co. v. Brown*, 187 U. S. 308; *New Orleans Water Works Co. v. Louisiana*, 185 U. S. 336.

The construction and effect of the provisions of the Constitution of the United States relied upon in the suit in the Circuit Court are settled beyond controversy by the following as well as many other decisions: *Munn v. Illinois*, 94 U. S. 113; *C. M. & St. P. R. R. v. Minnesota*, 134 U. S. 418; *Wisconsin &c. R. R. v. Jacobson*, 179 U. S. 287; *Covington v. Bridge Co.*, 154 U. S. 204; *Houston Central Ry. Co. v. Mayes*, 201 U. S. 321; *Railroad Commission Cases*, 116 U. S. 307; *Dow v. Beidleman*, 125 U. S. 680; *Carson v. Durham*, 121 U. S. 421; *Tennessee v. Davis*, 100 U. S. 257; *New Orleans v. Benjamin*, 153 U. S. 411; *McCain v. Des Moines*, 174 U. S. 168; *Defiance Water Co. v. City of Defiance*, 191 U. S. 184; *Hooker v. Los Angeles*, 188 U. S. 314; *Shoshone Min. Co. v. Rutter*, 177 U. S. 505; *Blackburn v. Gold Min. Co.*, 175 U. S. 571; *Carson v. Durham*, 121 U. S. 421; *Excelsior Wooden Pipe Co. v. Pacific Bridge Co.*, 185 U. S. 282; *Minnesota v. Northern Securities Co.*, 194 U. S. 48; *Western Union Tel. Co. v. Ann Arbor R. Co.*, 178 U. S. 239; *Equitable Life Assurance Co. v. Brown*, 187 U. S. 308; *New Orleans Water Works Co. v. Louisiana*, 185 U. S. 336; *New Orleans v. Water Works Co.*, 142 U. S. 79; *Hamblin v. Western Land Co.*, 147 U. S. 531; *St. Joseph &c. Co. v. Steele*, 167 U. S. 659; *Wilson v. North Carolina*, 169 U. S. 586.

The Circuit Court exceeded its power and authority in making its order that the petitioner be enjoined as Attorney General from taking appropriate legal proceedings to compel the railway companies to comply with the act of April 18, 1907.

Had the Eleventh Amendment never been adopted, this suit against the Attorney General could not be maintained, and had he in the first instance fully submitted himself to the jurisdiction of the Circuit Court, any order attempting to control the exercise of the executive discretion vested in him, would be beyond the power and authority of the court.

It should not be assumed under the authority of *Chisholm v. Georgia*, that in the absence of the Eleventh Amendment,